

U.O.Note No.235/Spl.B/2001-1, Genl.Admn. (Spl.B) Dept., dt.26.07.2001 regarding types of cases to be referred to Vigilance Commission for advice.

Subject Heading : Vigilance Commission - types of cases that should be referred

Ref : 1. G.O.Ms.No.421, G.A(SC.D) Dept., dt.03.08.1993.

2. U.O.Note No.2116/SC.E/96-2, G.A. (SC.E) Dept., dt.15.09.1997.

3. G.O.Ms.No.147, G.A. (Spl.B) Dept., dt.05.05.2000.

4. From Secy.to Govt., G.A. (Services) Dept., Lr.No.44907/Ser/ WEL/2000, dt.08.02.01.

In supersession of the U.O.Note 2nd cited, instructions were issued in the G.O. 3rd cited, among others that all cases of corruption and other irregularities which are covered under para 6 of the Scheme of the Vigilance Commission issued in the G.O. First cited, irrespective of the fact whether Anti-Corruption Bureau or other authorities including Departmental authorities which enquired into the irregularities, should be referred to Vigilance Commission for its advice.

2. As a result of the discussions between representative of the Government and members of Joint Action Committee of Employees, Teachers and Workers, it was agreed to further reconsider the implementation of G.O.Ms.No.147, G.A. (Spl.B) Dept., dt.01.05.2000 by Chief Secretary before a final decision is taken in the matter.

3. The Government after careful examination of the matter and in consultation with all concerned, issue the following revised instructions in partial modification of the instructions issued earlier in the G.O. 3rd cited.

- 1) All cases of misconduct on the part of public servants involving lack of integrity, which have a vigilance angle viz. Illegal gratification, bribery, causing loss to Government and unlawful gain to self or others and such other acts of corruption and criminal misconduct like misappropriation, cheating, fraud etc. should be referred to the Commission for its advice.
- 2) Other cases of misconduct involving administrative lapses which have no vigilance angle need not be referred to the Commission for its advice.

4. In the event of doubt whether a case has a vigilance angle or not may be decided at the level of Secretary to Government of the Department concerned. The Andhra Pradesh Vigilance Commission will however continue to be at liberty to call for any file at any time in terms of para 6 of G.O.Ms.No.421, General Administration (SC.D) Department, dt.03.08.1993.

5. All the Departments of Secretariat are therefore, requested to follow the above instructions strictly and also to instruct the Heads of Department under their administrative control for strict compliance.